



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 08-05-2024
BY: **MA. JHINA R. JUTILO**
SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 89TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JULY 30, 2024

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON OFFICIAL BUSINESS:

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
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ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Elvie U. Ohao		SB Member
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ABSENT:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor/ Acting Municipal Mayor
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ORDINANCE NO. 11
Series of 2024

**"AN ORDINANCE STRENGTHENING AND INSTITUTIONALIZING THE ADOPTION/IMPLEMENTATION
OF BANTAY ASF SA BARANGAY *GOODBYE ASF* IN THE MUNICIPALITY OF CARMEN, PROVINCE OF
SURIGAO DEL SUR"**

Author : Hon. Rencio P. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

African Swine Fever (ASF), a high impact Transboundary Animal Disease (TAD) continues to affect the swine production sector of the Philippines with no vaccine and no known cure to date resulting to industry estimate of 36% reduction of national swine inventory impacting both livelihood and agriculture economy.

African Swine Fever (ASF) had infiltrated to some barangay nearby the municipality of Carmen, Surigao del Sur including its two barangays, Esperanza and Hinapoyan.

Early reporting of animals borne disease is vital for an efficient and well-coordinated response and immediate implementation of control measures also successful control effort lies with the strong collaboration between the department of agriculture, its relevant agencies with concerned local government units (LGU) and stakeholders taking ownership of such program benefitting the farmers.

The Department of Agriculture (DA) Administrative Order No. 7, Series of 2021, "Implementing Guidelines for the Bantay ASF sa Barangay Program" was enacted for the for the intensified disease response of the Government against ASF, where the DA, academe, private stakeholder and swine industry experts provide technical and support services to empower LGU's in the implementation of "BANTAY ASF SA BARANGAY PROGRAM" intervention at the farm and community levels.

Section 6 of DA Administrative Order No. 7, Series of 2021, "Implementing Guidelines for the Bantay ASF sa Barangay Program" reiterates the strengthening and institutionalizing of LGU engagement in the implementation of the Bantay ASF Program.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This Ordinance shall be known as "Strengthening and Institutionalizing the Adoption/Implementation of Bantay ASF sa Barangay *Goodbye ASF* in the Municipality."

SECTION 2. Creation of Municipal ASF Task Force- By virtue of DA AO No. 43, Series of 2020, a Municipal ASF Task Force is hereby created.

SECTION 3. Composition of Municipal ASF Task Force- The Municipal ASF Task Force is compose of the following:

- | | | |
|----------------|---|--|
| Chairperson | - | Municipal Mayor |
| Co-Chairperson | - | Municipal Vice Mayor |
| Members | - | Municipal Agriculturist |
| | - | Municipal Engineer |
| | - | Municipal Planning and Development Coordinator |
| | - | Municipal Disaster Risk Reduction and Management Officer |
| | - | Municipal Environment and Natural Resources Officer |
| | - | DepED Representative |
| | - | Barangay Captain, Poblacion |
| | - | Barangay Captain, San Vicente |
| | - | Barangay Captain, Sta. Cruz |
| | - | Barangay Captain, Puyat |
| | - | Barangay Captain, Antao |
| | - | Barangay Captain, Cancavan |
| | - | Barangay Captain, Esperanza |
| | - | Barangay Captain, Hinapoyan |

- Representative from Philippine National Police- Carmen
- Representative from Philippine Army- Carmen based
- NGO, CSO
- BPATS (all barangays)

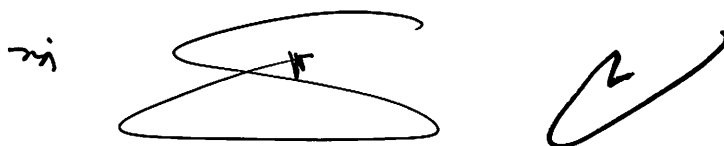
SECTION 4. Technical Support Teams-

These are the regular members of the ASF-TF that are responsible for the preservation and protection of the swine industry in the Municipality.

Rapid Action Team-	Representative from: - Municipal Agriculture Office - MDRRMO - PNP- Carmen - Philippine Army- Carmen based
Surveillance Team-	Representative from: - Municipal Agriculture Office - MENRO - RHU - BFP- Carmen - PNP- Carmen - AFP
Quarantine Team-	Representative from: - Municipal Agriculture Office - BLGU - PNP- Carmen - AFP
Census Team-	Representative from: - MPDC - Municipal Agriculture Office - CSO, NGO
IEC Team-	Representative from: - Municipal Agriculture Office - RHU - DepED - MPDC - BLGU

SECTION 5. Functions-

- 1) Rapid Action Team- carry out the immediate diagnosis of suspect premises and the initiation and implementation of the stamping out procedures
- 2) Surveillance Team- conduct regular surveillance and profiling of swine diseases in the identified priority areas
- 3) Quarantine Team- conducts periodic identification and consolidation of data on swine population, location, etc.
- 4) Census Team- conducts periodic identification and consolidation of data on swine population, location, etc.



- 5) IEC Team- ensures adequate awareness of the general public matters and updates to African Swine Fever.

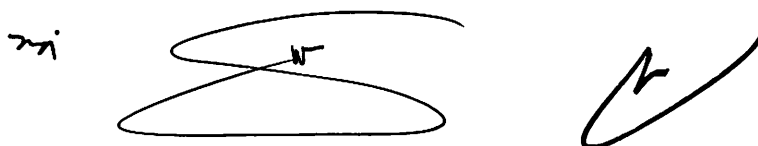
SECTION 6. Registration and Deputization of Biosecurity Officers-

- 1) Municipal Agriculturist (M.A)/Livestock Inspector- are Resident Veterinarians or Veterinary Consultants who shall be recognized as Biosecurity Officer of VetBO while Barangay Biosecurity Officers (BBOs) are Community/Village-Based Animal Technicians (CBAT), Barangay Animal Health Workers (BAHW), Para-Veterinary Workers, Barangay Livestock Aide (BALA), Volunteer Veterinarians who are not resident or consulting veterinarian of any farm, or any person assigned/endorsed by the municipality to act as such and perform the duties and responsibilities stated in Administrative Order No. 7.
- 2) PVO- All VetBOs shall and BBOs shall be registered and deputized by the Provincial Veterinary Office (PVO), VetBO shall apply directly to PVO, while BBO shall be assigned/endorsed by the MAO/Livestock Inspector. Upon completion of all requirements and training, a Biosecurity Officer Code will be issued by the PVO.
- 3) MAO/Livestock Inspector- The Livestock Inspector/MAO shall endorse the list of registered BBO to be issued a Biosecurity Officer Code by the PVO.
- 4) To fast track the implementation of this activity, all existing Networks of Animal Health Workers such as Barangay Animal Livestock Aide (BALA), Barangay Animal Health Worker (BAHW), and other similar barangay officials assigned to assist in the implementation of different animal health programs shall be readily designated for this purpose.

SECTION 7. Disease Investigation-

- (a) A disease investigation is prompted when there is a report of suspect case of ASF in the area. The Municipal ASF Force in coordination with the Provincial ASF Task Force (PATF) and Regional ASF Task Force (RATF) shall act quickly on the reported case by conducting thorough disease investigation and sample collection.
- (b) Blood/organ samples to be collected for disease investigation shall come from thirty (30) randomly selected animals preferably exhibiting clinical signs consistent with that of ASF, if the population is greater than thirty (30). If the population is less than thirty (30), samples shall be collected from all pigs in the farm.
- (c) A disease investigation activity shall be conducted in accordance with the protocol set in Annex 2 of the DA AO 7, Series of 2021.
- (d) Slaughtered animal who's unfit to human consumption shall act quickly for confiscation/disposal of hot meat and meat by-products as provided in the Ordinance No. 34 "An Ordinance Governing the Operation of the Municipal Slaughterhouse. The slaughter of Food Animals, Meat Inspection and Meat trading in the Municipality of Carmen, Surigao del Sur.

SECTION 8. Surveillance- Surveillance shall be done in accordance to Section 3.3 of the DA AO No. 7, Series of 2021. Furthermore, a detailed protocol on surveillance within the 1 km quarantine area from the ASF infected is stipulated in Annex 3 of the said DA AO.

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SECTION 9. Issuance of Weekly Negative Disease Monitoring Report and Hog Transport Pass-

9A) Weekly Negative Disease Monitoring:

- (1) Commercial/Semi-commercial Farm- VetBOs and BBOs (as approved by MAO) shall conduct disease monitoring and bio security evaluation and submit report to the MAO/Livestock/PVO.
- (2) Small Hold Farms- BBOs shall conduct disease monitoring and biosecurity evaluation and submit reports to the MAO/Livestock Inspector/PVO. Community sampling may also apply following the guidelines in the community testing and sample collection in Annex 4 of DA AO 7, Series of 2021.
- (3) Weekly disease monitoring report- shall be submitted through online and/or on-site depending on the discretion of the implementing MAO/Livestock Inspector/PVO.
- (4) Biosecurity Officers- shall report immediately to their respective MAO/Livestock Inspector/PVO, any farms with animals showing clinical signs suggestive of ASF infection for corresponding actions such as surveillance and diseases investigations.

9B) Hog Transport Pass:

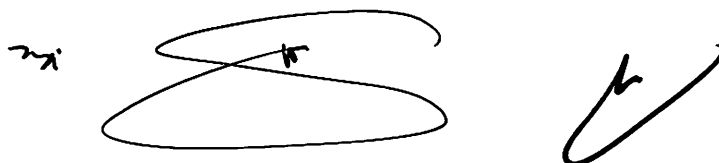
This aims to properly register all hog traders and other logistical support providers and their respective transport vehicles and vessels transacting business in the respective provinces with the end view of traceability and maintain disease free areas thereby achieving safe, clean and orderly handling of commodities throughout the stages of marketing or distribution channels.

- (1) No hog traders and livestock transport carries shall be allowed to transact business within each province without the Hog Transport Pass (HTP) which shall be a requirement before issuance of Veterinary Health Certificate (VHC).
- (2) All livestock transport carriers are required to comply with the biosecurity measures such as cleaning and disinfection as may be imposed by the authorities.
- (3) Any violation in this guideline by the hog traders and other logistical support providers shall immediately render his/her HTP revoked.
- (4) An updated list of traders shall be submitted regularly by all provinces to the DARFO and the BAI.
- (5) Issuance of Hog Transport Pass shall be accordance with Annex 6 of DA AO No. 7, Series of 2021.

SECTION 10. Awareness Campaign-

Awareness campaign shall be conducted to ensure that all aspects relevant to Goodbye ASF will be cascaded and disseminated to the farmers.

- 1) Engagement of agencies including the Department of Agriculture (DA) Communications Group, Agriculture and Fisheries Information Division (AFID), Regional Agriculture and Fisheries Information Sections (RAFIS), Agricultural Training Institute (ATI) and Local Government (Provincial to Municipal/City) information office, and all media resources of government shall be involved.
- 2) The campaign shall focus on ensuring that biosecurity protocols are duly observed by the farmers, discouraging the use of swill as feed for hogs and bringing farmers to register in the Farmers Registry developed for livestock framers.

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SECTION 11. Recovery and Population- The Local Government Unit shall guide farms for the proper cleaning and disinfection. PVO/MAO shall conduct farm inspection to assess compliance with cleaning and proper disinfection procedures.

The complete guidelines and procedures for the recovery and repopulation is presented in Annex 8 of DA AO No. 7, Series of 2021.

SECTION 12. Declaration of ASF Free Status-

There are two (2) levels of Declaration of ASF Free Status of an area previously infected with ASF.

- 1) The first level is the City/Municipal Level Local Declaration of ASF Free Status for cities/municipalities with certain barangay/s which have been previously infected with ASF and shall be declared ASF Free area by the Provincial ASF Task Force.
- 2) The second level is the National Declaration of ASF Free Status for the whole Province to be declared by the Bureau of Animal Industry. All infected barangays of the municipality must be locally declared ASF Free area prior to application to be declared ASF Free on a national level.

The guidelines for Declaration of ASF Free Status is subject to adoption as deemed necessary by DA-BAI.

SECTION 13. Penalties and Sanctions- The Local Government Unit shall penalize any person or entry found to have committed the instances/acts listed under Section 9 “Violations/Prohibited Acts” of DA AO No. 7, Series of 2021.

13.1. Any person or entity found to have committed any of the following instances/acts shall be deemed in violation of this Order.

13.2. Tampering and falsification of documents such as but not limited to:

13.2.1. Veterinary Health Certificate

Penalties:	Sanctions:
1 st Offense- One Thousand Pesos (Php1,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
2 nd Offense- Two Thousand Pesos (Php2,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be humanely disposed in accordance with ASF- (3D) protocol and shall recommend for the revocation of business permit and imprisonment not exceeding one (1) year, or both in the discretion of the court, for violation of Municipal Ordinance.



13.2.2. Certificate of Free Status on ASF

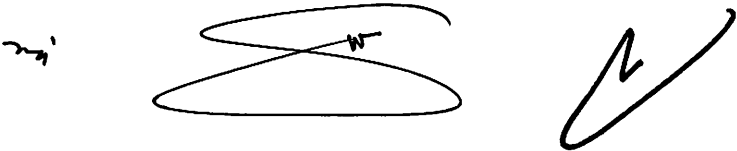
Penalties:	Sanctions:
1 st Offense- One Thousand Pesos (Php1,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
2 nd Offense- Two Thousand Pesos (Php2,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be humanely disposed in accordance with ASF- (3D) protocol and shall recommend for the revocation of business permit and imprisonment not exceeding one (1) year, or both in the discretion of the court, for violation of Municipal Ordinance.

13.2.3. Laboratory Test Results for ASF

Penalties:	Sanctions:
1 st Offense- One Thousand Pesos (Php1,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
2 nd Offense- Two Thousand Pesos (Php2,000.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be returned from the place of Origin.
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Shipment/accompanied pork and frozen products shall be confiscated, burned and buried. Live hogs shall be humanely disposed in accordance with ASF – (3D) protocol and shall recommend for the revocation of business permit and imprisonment not exceeding one (1) year, or both in the discretion of the court, for violation of Municipal Ordinance.

13.2.4. Weekly Negative Disease Monitoring Report

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.
COMMERCIAL 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.

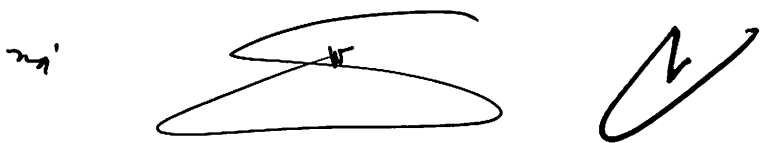


13.2.5. Biosecurity Evaluation Form

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.
COMMERCIAL 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.

13.2.6. Concealment of Information

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.
COMMERCIAL 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.



13.2.7. Removal of diseased animals from Quarantine Area

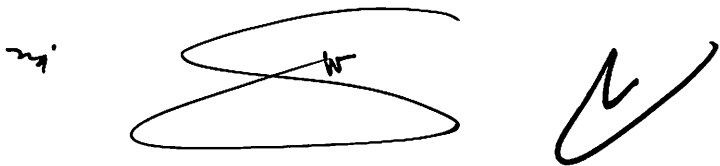
Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	Confiscate the animal and dispose humanely in accordance with ASF (3) protocol.
2 nd Offense- Two Thousand Pesos (Php2,000.00)	Confiscate the animal and dispose humanely in accordance with ASF-(3D) Protocol or imprisonment not exceeding one (1) year, or both in the discretion of the court, for violation of Municipal Ordinance.
COMMERCIAL FARM 1 st Offense- One Thousand Pesos (Php1,000.00)	Confiscate the animal and dispose humanely in accordance with ASF (3D) protocol.
2 nd Offense- Two Thousand Pesos (Php2,000.00)	Confiscate the animal and dispose humanely in accordance with ASF (3D) Protocol and shall (recommend for revocation of Hog Transport Pass (HTP) issued by DA-RFO 13 or imprisonment not exceeding one (1) year, or both in the discretion of the court, for violation of a Municipal Ordinance.

13.2.8. Non-Reporting/Delay in Reporting

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.
Penalties:	Sanctions:
COMMERCIAL 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit/temporary closure of the farm or imprisonment not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.

13.2.9. Refusal to Farm Inspection and Conduct of Surveillance

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.



Penalties:	Sanctions:
COMMERCIAL 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.

13.2.10. Data Privacy Issues

Penalties:	Sanctions:
BACKYARD 1 st Offense- One Thousand Pesos (Php1,000.00)	
2 nd Offense- Two Thousand Pesos (Php2,000.00)	
3 rd Offense- Two Thousand Five Hundred Pesos (Php2,500.00)	Recommend for the revocation of business permit not exceeding one (1) year, or both in the discretion of the court, for the violation of Municipal Ordinance.

Any and all collected pursuant to the Municipal Ordinance shall be mused for the enhancement of the ASF-Biosecurity Program within the locality concerned, as well as the achievement of the objectives in the Order.

SECTION 14. Funding- Counterpart funding to support the activities of the African Task Force shall be allocated by the Office of the Governor.

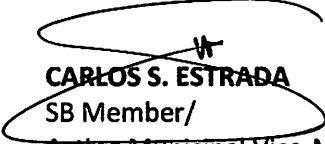
SECTION 15. Effectivity- This Ordinance shall take effect immediately.

ENACTED this 30th day of July, 2024 at Carmen, Surigao del Sur.

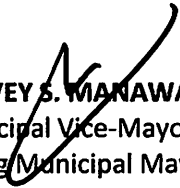
I HEREBY ATTEST to the correctness of the foregoing ordinance.

MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice-Mayor/
Presiding Officer

APPROVED:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Acting Municipal Mayor